

FOURTH ADDENDUM TO LEASE AGREEMENT

This Fourth Addendum To Lease Agreement (this “**Fourth Addendum**”) is entered into as of the dates set forth below, but effective for all purposes as of April 1, 2019 by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the “**Lessor**”); and

TYE HEBERT INVESTMENTS, L.L.C., d/b/a HERSHEY’S ICE CREAM, a Louisiana limited liability company, whose mailing address is 137 Teljean Road, Lafayette, Louisiana 70503, and whose address during the term of this Lease shall be 107 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the “**Lessee**”).

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of April 1, 2007 (the “**Lease Agreement**”); and

WHEREAS, the Lessor and the Lessee entered into a First Addendum To Lease Agreement dated as of January 29, 2010 providing for an extension of the Lease Agreement for an additional thirty-six (36) month period expiring March 31, 2013 (“**First Renewal Term**”); and

WHEREAS, the Lessor and the Lessee entered into a Second Addendum to Lease Agreement dated as of March 8, 2013, providing for an extension of the Lease Agreement for an additional thirty-six (36) month period expiring March 31, 2016 (the “**Second Renewal Term**”); and

WHEREAS, the Lessor and the Lessee entered into a Third Addendum to Lease Agreement dated as of April 1, 2016, providing for an extension of the Lease Agreement for an additional thirty-six (36) month period expiring March 31, 2019 (the “**Third Renewal Term**”); and

WHEREAS, the Third Renewal Term ends March 31, 2019, and the Lessor and Lessee wish to amend the Lease Agreement to provide for an extension of the Lease Agreement for an additional thirty-six (36) month period and to address certain other issues.

NOW THEREFORE, in consideration of the foregoing, the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. The Lessor and the Lessee hereby agree that the Lessee, subject to the terms and conditions set forth in this Addendum, is renewing and extending the Lease Agreement

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for thirty-six (36) months beginning April 1, 2019 and expiring March 31, 2022 (the "**Fourth Renewal Term**").

2. The Base Rent and Additional Rent payable during the Fourth Renewal Term in accordance with Paragraph 3 of the Third Addendum to Lease Agreement shall be as follows:
 - a) Base Rent during the Fourth Renewal Term shall be \$12.50 per square foot per year, payable monthly ("**Base Rent**").
 - b) With respect to Additional Rent, the amount of Common Area Maintenance Charges for the Fourth Renewal Term is hereby fixed at \$1.35 per square foot of the Premises per annum, payable monthly, and the amount of Taxes and Insurance Charges for the Fourth Renewal Term is hereby fixed at \$2.60 per square foot of the Premises per annum, payable monthly.

Beginning on first day of the Fourth Renewal Term and extending through the last day of the Fourth Renewal Term, the Total Monthly Rental Payment shall be calculated as follows:

Base Rent	\$1,815.00
Common Area Maintenance Charges	196.09
Tax and Insurance Charge	377.65
Total Monthly Rental Payment	<u>\$2,388.74</u>

3. The Lessor and Lessee hereby agree to amend Section 11.01 of the Lease Agreement to add the following sentence:

In the event that any trash or refuse receptacles situated in the area immediately adjacent to the Premises become full during and throughout any day during which Lessee is open for business, Lessee shall promptly empty said trash receptacles at its own cost and expense.

The remainder of Section 11.01 shall remain unchanged.

4. Provided that the Lessee is not in default in the performance of this Agreement, Lessee shall have one (1) option to extend the Lease Agreement for an additional three (3) year term (the "**Fifth Renewal Term**"). All of the terms and conditions of the Lease Agreement, as amended by the First, Second, Third and Fourth Addenda thereto, shall apply during the Fifth Renewal Term, except that the monthly rental amount shall be negotiated between the Lessor and the Lessee. The option to renew shall be exercised by written notice given to Lessor by Lessee not less than sixty (60) days prior to the expiration of the Fourth Renewal Term. If notice is not given in the manner provided herein and within the time specified, the option granted herein shall terminate.

5. The Lessor and the Lessee hereby agree that the terms and conditions of this Fourth Addendum shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants of On The Boulevard Shopping Center. The Lessee acknowledges that the foregoing covenant of confidentiality constitutes a portion of the consideration delivered to the Lessor to induce the Lessor to execute and deliver this Fourth Addendum and any breach thereof shall constitute an event of default by the Lessee under the Lease Agreement.
6. The remainder of the terms of the Lease Agreement not specifically amended by the First Addendum, Second Addendum, Third Addendum or this Fourth Addendum shall remain and be in full force and effect.
7. This Fourth Addendum to Lease Agreement may be executed in two or more counterparts each of which, when executed and delivered as prescribed, shall constitute an original.

[SIGNATURES APPEAR ON THE FOLLOWING PAGES.]

IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year hereinbelow.

WITNESSES:


Printed Name: Jenna Daigle


Printed Name: Rachael Calande

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: 
Edward E. Abdalla, IV
Manager

Dated: 5/4/19


Notary Public



IN WITNESS WHEREOF the parties hereto have executed this Agreement the day and year hereinbelow.

WITNESSES:

Madison Nash

Printed Name: Madison Nash

Heidi Romero

Printed Name: Heidi Romero

LESSEE:

TYE HEBERT INVESTMENTS, L.L.C.,
a Louisiana limited liability company

By: [Signature]

Printed Name: HEATHER BILLINGSLEY

Dated: 3/4/19

Katherine E. Currie

Notary Public

